

GZ: 2024-0.199.724 of July 4, 2024 (Case Number: DSB-D124.2340/23)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical information, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the data protection complaint of Mag. Dieter A*** (complainant) dated October 23, 2023 against the Court of Auditors of Austria (respondent) regarding the violation of the right to confidentiality as follows:

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The complaint is dismissed as unfounded.

Legal bases: Art. 9, Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1, 18 para. 1, and 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; § 6 para. 2 and para. 3 of the Federal Act on the Financing of Political Parties (Political Parties Act 2012 – PartG), Federal Law Gazette I No. 56/2012 as amended.

REASONING

A. Submissions of the parties and procedural history

1. In a submission dated October 23, 2023, the complainant, through his legal representative, summarized that the respondent violated his right to confidentiality by publishing the party donation of the complainant in the amount of € 3.***,00 [Note from the editor: exact amount not disclosed for pseudonymization reasons] on the respondent's website, thereby disclosing the political opinion or sensitive data of the complainant. According to Art. 9 para. 1 GDPR, the processing of personal data revealing, among other things, political opinions is prohibited. This applies to the complainant's data, as it directly arises from the complainant's party donation activity to a specific party. Although there is a legal basis for the publication of the complainant's data in § 6 para. 3 PartG, and the transparency of party finances may also be in the public interest, it is disproportionate to publish the identity of the donor, as this is by no means necessary to safeguard the public interest. Therefore, the deletion should be ordered by the Data Protection Authority in accordance with Art. 58 para. 2 lit. g GDPR.

2. With the decision of the Data Protection Authority dated October 24, 2023, the present proceedings were suspended until the judgment of the CJEU in the preliminary ruling procedure in Case C-33/22 in accordance with § 38 AVG with decision GZ: D124.2340/23, 2023-0.762.304.

3. With the decision of the Data Protection Authority dated January 19, 2024, the decision of October 24, 2023, GZ: D124.2340/23, 2023-0.762.304 was revoked based on the judgment of the CJEU dated January 16, 2024, in Case C-33/22, and the present proceedings were continued, and the respondent was invited to submit a statement.

4. In a submission dated February 13, 2024, the respondent essentially referred to the wording of § 6 para. 2 and para. 3 PartG and stated that the legal concerns raised by the complainant in his written submission against § 6 para. 3 (and para. 2) PartG could not be opposed to the fulfillment of the respondent's legal obligation to publish information about donations.

5. In a submission dated March 12, 2024, the complainant, through his new legal representative, summarized that the data protection issue in the present case is that, according to Art. 9 para. 1 GDPR, the processing of personal data revealing political opinions is generally prohibited, and there is no exception to this prohibition according to Art. 9 para. 2 GDPR applicable to this case. If at all, one might consider the exception under Art. 9 para. 2 lit. g GDPR, but even this proves to be untenable, as the publication according to § 6 para. 2 and para. 3 PartG is, firstly, disproportionate in its scope and, secondly, not accompanied by "appropriate and specific measures to safeguard the fundamental rights and interests of the data subjects." The GDPR is directly applicable, and conflicting national legal provisions in cases of norm collisions must yield to the primacy of Union law.

B. Subject of the complaint

Based on the initiating submission of the complainant, the subject of the complaint is the question of

whether the respondent violated the complainant's right to confidentiality by publishing the personal data (name, party donation) of the complainant on its website.

C. Findings of fact

1. The complainant made a party donation of € 3.***,00 to an Austrian party on **. May 2023.

2. This donation was published by the respondent on its website, including the name of the complainant:

[Note from the editor: The screenshot from the respondent's website reproduced here as a facsimile (graphic file) cannot be pseudonymized with reasonable effort and has therefore been removed. It contains the following data: exact URL of the website, name of the complainant, postal code of his address, date of receipt and reporting date of the donation, amount and recipient of the donation.]

****Assessment of Evidence:**** The findings made are based on the submissions of the two parties to the proceedings, as well as on the official research conducted by the Data Protection Authority on www.rechnungshof.gv.at (last accessed on July 3, 2024) and are undisputed.

****D. In legal terms, it follows that:****

****D.1. Regarding the jurisdiction of the Data Protection Authority and the role of the respondent****

According to Art. 121 para. 1 B-VG, the respondent is responsible for reviewing the management of the federal government, the states, the municipal associations, the municipalities, and other legal entities designated by law.

According to Art. 122 para. 1 B-VG, the respondent is directly subject to the National Council. He acts as an organ of the National Council in matters of federal management and the management of statutory professional representations, insofar as they fall under the execution of the federal government, and in matters of state, municipal association, and municipal management as well as the management of statutory professional representations, insofar as they fall under the execution of the states, as an organ of the respective state parliament.

The respondent exercises his functions as an independent organ of the National Council or the respective state parliament; in this respect, he acts as an organ of legislation (VfSlg 15.130/1998; 19.807/2013).

Thus, the respondent, like the (investigative committee of the Austrian National Council concerning the judgment of the CJEU C-33/22), is an (independent control) organ of legislation.

The CJEU has ruled that Art. 16 para. 2 sentence 1 TFEU and Art. 2 para. 2 letter a GDPR are to be interpreted in such a way that it cannot be assumed that an activity falls outside the scope of Union law and is thus exempt from the application of the GDPR solely because it is carried out by an investigative committee established by the parliament of a Member State in the exercise of its control rights over the execution (Judgment of the CJEU of January 16, 2024, C-33/22, para. 43).

Furthermore, Articles 77 para. 1 and 55 para. 1 GDPR are to be interpreted in such a way that these provisions, when a Member State has established only a single supervisory authority in accordance with Art. 51 para. 1 GDPR but has not endowed it with the jurisdiction to oversee the application of this regulation by an investigative committee established by the parliament of that Member State in the exercise of its control rights over the execution, directly confer jurisdiction on that authority to decide on complaints regarding the processing of personal data carried out by this investigative committee (Judgment of the CJEU of January 16, 2024, C-33/22, para. 72).

The jurisdiction of the Data Protection Authority, which at the time of the decision in question is established as the sole supervisory authority in Austria in accordance with § 18 para. 1 DSG, is therefore based directly on Art. 55 para. 1 GDPR. In response to the CJEU ruling C-33/22, the legislator has created its own supervisory authority, which will henceforth oversee compliance with the fundamental right in the area of legislation (see: General Data Protection Regulation will soon also apply to Parliament | Parliament Austria) [Note by the editor: Hyperlink to the Parliament's website removed]. Since the newly established Parliamentary Data Protection Committee will only be set up on January 1, 2025, the Data Protection Authority is responsible for the decision at the time of the decision in question.

D.2. Relevant Legal Provisions

§ 1 para. 1 and para. 2 of the Data Protection Act (DSG) read as follows, including the heading:

Fundamental Right to Data Protection

§ 1. (1) Everyone has the right, particularly with regard to the respect for their private and family life, to the confidentiality of their personal data, provided there is a legitimate interest in doing so. The existence of such an interest is excluded if data, due to their general availability or because of their lack of traceability to the data subject, are not accessible to a confidentiality claim.

(2) To the extent that the use of personal data does not occur in the vital interest of the data subject or with their consent, restrictions on the right to confidentiality are only permissible to protect overriding legitimate interests of another party, and in the case of interventions by a state authority, only based on laws that are necessary for the reasons specified in Art. 8 para. 2 of the European Convention on Human Rights (ECHR), BGBl. No. 210/1958. Such laws may only provide for the use of data that is particularly worthy of protection in order to safeguard important public interests and must simultaneously establish adequate guarantees for the protection of the confidentiality interests of the data subjects. Even in the case of permissible restrictions, the intervention in the fundamental right must always be carried out in the least intrusive manner necessary to achieve the objective.

§ 6 para. 2 and para. 3 of the Political Parties Act (PartG) read as follows (underlining by the authority):

(2) The political party must report to the Court of Audit, for the purpose of public information about the financing of political parties through private means, in an open and machine-readable standardized format, no later than four weeks after the end of a calendar quarter, the individual donations received over €150, stating the name of the donor, the date of receipt of the donation, the amount, and the specific recipient of the donation (organization, affiliated organization, personal committee, member of parliament, or candidate). For individual donations exceeding €500, the postal code of the residential or business address of the respective donor must also be collected and reported to the Court of Audit. The Court of Audit must publish the individual donations over €500, stating the name and postal code of the donor, the date of receipt of the donation, the amount, and categorized by the specific recipient of the donation without delay. The Court of Audit and the political party must delete the names of the donors after the expiration of the period specified in § 5 para. 8.

(3) Between the cut-off date of the election to the National Council or the European Parliament and the election day, individual monetary donations over €2,500 must be reported to the Court of Audit, stating the name and address of the donor, the date of receipt of the donation, the amount, and the specific recipient of the donation (organization, affiliated organization, personal committee, member of parliament, or candidate) without delay. The Court of Audit must publish these donations, stating the name of the donor, the date of receipt of the donation, the amount, and the specific recipient of the donation (organization, affiliated organization, personal committee, member of parliament, or candidate) on its website without delay.

D.3. On the Right to Confidentiality

According to the constitutional provision of § 1 para. 1 DSG, everyone has the right to confidentiality of their personal data, particularly with regard to the respect for their private and family life, as long as there is a legitimate interest in doing so. The GDPR and, in particular, the principles enshrined therein must be taken into account when interpreting the right to confidentiality (see the decision of the DSB dated October 31, 2018, GZ DSB-D123.076/0003-DSB/2018).

In the present case, the scope of application of § 1 para. 1 DSG is opened, as the information (name, party donation) according to Art. 4 no. 1 GDPR relates to the complainant. The publication of the complainant's data on the website constitutes a processing of data within the meaning of Art. 4 no. 2 GDPR, and the respondent is undisputedly the controller for the data processing in question within the meaning of Art. 4 no. 7 GDPR.

The Supreme Court summarized that, in light of the protective purpose of Art. 9 para. 1 GDPR, not only data from which the actual political opinion of the affected person emerges are to be included in the protective scope of Art. 9 para. 1 GDPR, but also data about presumed political preferences of the affected person (see OGH of April 15, 2021, 6 Ob 35/21x).

The Administrative Court concurred with the legal opinion of the Supreme Court and additionally stated that for the application of Art. 9 para. 1 GDPR, it is sufficient if the sensitive information regarding the category of data political opinions emerges only indirectly (see VwGH of December 14, 2021, Ro

2021/04/0007).

Therefore, the complainant's data in question falls within the scope of application of Art. 9 para. 1 GDPR, as the political preferences of the complainant clearly emerge from their donation activities. According to Art. 9 para. 1 GDPR, the processing of special categories of personal data is only lawful if one of the exhaustively listed permissibility conditions in Art. 9 para. 2 is met; however, a strict standard must be applied to the exceptions (Weichert in Kühling/Buchner, DS-GVO/BDSG2 Art 9 Rz 46).

In this context, Art. 9 para. 2 lit. g GDPR must be examined, according to which processing is permissible if it is based on Union law or the law of a Member State, which is in reasonable relation to the pursued objective, preserves the essence of the right to data protection, and provides appropriate and specific measures to safeguard the fundamental rights and interests of the affected person, necessary for reasons of significant public interest.

In this context, reference must be made to the domestic norm of § 6 PartG:

§ 6 para. 2 PartG stipulates that political parties, for the purpose of public information about their financing through private means, must report individual donations exceeding €150, including the name of the donor, the date of receipt of the donation, the amount, and the specific recipient of the donation (organization, affiliated organization, campaign committee, member of parliament, or candidate) to the respondent. For individual donations exceeding €500, the postal code of the residential or business address of the respective donor must also be collected and reported to the Court of Auditors.

The Court of Auditors must publish individual donations over €500, including the name and postal code of the donor, the date of receipt of the donation, the amount, and categorized by the specific recipient of the donation without delay.

§ 6 para. 3 PartG stipulates that the respondent must report individual monetary donations over €2,500 between the cut-off date for the election to the National Council or the European Parliament and the election day, including the name and address of the donor, the date of receipt of the donation, the amount, and the specific recipient of the donation. The Court of Auditors must publish these donations, including the name of the donor, the date of receipt of the donation, the amount, and the specific recipient of the donation (organization, affiliated organization, campaign committee, member of parliament, or candidate) without delay on its website.

Thus, the processing of the complainant's personal data or the publication of the name and the donation amount of €3.***,- from the complainant is permissible, as § 6 para. 2 and para. 3 PartG constitutes a legal basis within the meaning of Art. 9 para. 2 lit. g GDPR.

The "significant public interest" required in Art. 9 para. 2 lit. g GDPR is deemed to exist by the Data Protection Authority, as the transparency of party financing certainly represents such a significant public interest.

D.4. On the Complainant's Submission Regarding the Appropriate and Specific Measures in the Sense of Art. 9 para. 2 lit. g GDPR

The complainant summarized that the publication according to § 6 para. 2 and para. 3 PartG is not accompanied by "appropriate and specific measures to safeguard the fundamental rights and interests of the affected persons." The GDPR is directly applicable, and conflicting national legal provisions must yield to the primacy of Union law in cases of norm collision.

****Introductory Note****

It is brought to attention that the Data Protection Authority has issued a statement in the committee review of the Constitutional Committee regarding the proposal 2487/A for the amendment of the Political Parties Act: <https://www.parlament.gv.at/gegenstand/XXVII/SN/273819/>. In this statement, the Data Protection Authority pointed out the requirements for a norm in accordance with Art. 9 para. 2 GDPR and § 1 para. 2 DSG concerning the proposed text of the Political Parties Act. In particular, the Data Protection Authority highlighted the necessity of a Data Protection Impact Assessment (DPIA) and also noted that the required proportionality of the fundamental rights interference associated with the proposed legislative text had not been addressed.

The Constitutional Committee responded to the suggestions of the Data Protection Authority and published in its committee report dated July 4, 2022 (see https://www.parlament.gv.at/dokument/XXVII/I/1637/fname_1458190.pdf) both a Data Protection

Impact Assessment (DPIA) including the remedial measures available to the affected parties (pages 52 ff of the committee report). Furthermore, the proportionality of the fundamental rights interference associated with the proposed legislative text was addressed as follows (excerpt):

“The collection of the postal code of the residential or business address of a donor should enable the identification of the donors, particularly in cases of name similarity. At the same time, however, data protection is taken into account by no longer publishing the entire address as previously done. In this context, various interests must be weighed, namely, on the one hand, the interest in transparent party financing and, on the other hand, the interest in maintaining data protection. After the expiration of the period specified in § 5 para. 8, it is ordered to delete the names of the donors. The remaining data, i.e., the individual amounts as well as the postal codes, should, if possible, be retained for statistical purposes. For this reason, only the deletion of the names of the donors has been ordered.”

As can be seen from § 6 para. 2 and para. 3 of the Political Parties Act (PartG), a clear differentiation is made between the amount of donations and the publication of personal data. By no longer publishing the entire address of the complainant as previously provided in the version of § 6 para. 4 PartG in BGBl. I No. 55/2019 (but only the postal code), as well as by establishing a deletion period (§ 6 para. 2 last sentence PartG) and the remedial measures available to the affected parties, appropriate and specific measures to safeguard the fundamental rights and interests of the affected individuals in accordance with Art. 9 para. 2 lit. g GDPR have been implemented.

Furthermore, the regulation is clear and precise regarding the scope and application of this measure and complies with the principle of good faith in that the data of the complainant is processed in a comprehensible manner. Therefore, the data protection authority cannot identify any obvious contradiction between § 6 para. 2 and para. 3 of the Political Parties Act (PartG) and Union law, or to Art. 9 para. 2 lit. g of the General Data Protection Regulation (GDPR), which would obligate the data protection authority to refrain from applying domestic regulations due to the primacy of Union law, especially since the principles for the processing of personal data in the sense of Art. 5 GDPR have also been adhered to (cf. regarding the legal situation under Directive 95/46/EC the judgment of December 11, 2019, C-708/18, para. 36).

Furthermore, it should be noted that Austria is not alone in its legislation regarding the transparency of party financing within the European Union: In Germany, in addition to the name and amount of the party donation according to § 25 para. 3 sentence 2 and 3 of the (German) Political Parties Act, the full address of the donor must also be published on the website of the Bundestag: <https://www.bundestag.de/parlament/praesidium/parteienfinanzierung/fundstellen50000/2024/2024-inhalt-984862>.

The German Federal Constitutional Court addressed the publication of party donations in its judgment 2 BvE 2/89 of April 9, 1992, para. 165: “The provision of Art. 21 para. 1 sentence 4 of the Basic Law (GG) is based on the consideration that the political will formation within a party can be significantly influenced by individuals or organizations that provide financial resources to the parties on a larger scale. Such entanglement of political and economic interests should be disclosed. The voter should be able to inform themselves about the forces that determine the politics of the parties, and they should have the opportunity to verify the consistency between the political programs and the behavior of those who seek to influence the parties with the help of financial resources (BVerfGE 24, 300 [356]; cf. also BVerfGE 20, 56 [106]; 52, 63 [86 f.]). The internal order of the parties should be secured against undemocratic influences through the obligation of public accountability (cf. the corresponding request of the representative Brockmann in the discussions of the Parliamentary Council -- reproduced in v. Doemming-Füßlein-Matz, JöR n.F., Vol. 1 [1951], p. 207), and precautions should be taken to ensure that “the public is informed about the origin of the parties' funds, so that it is evident who stands behind a political group” (thus the written justification of the proposal by representatives Wagner and Zinn determining the original version of Art. 21 para. 1 sentence 4 GG in the Parliamentary Council [Drs. 897] -- reproduced in v. Doemming-Füßlein-Matz, loc. cit.).”

In conclusion, it should be noted that the data processing relevant here according to § 6 para. 2 and 3 of the Political Parties Act (PartG) finds coverage in Art. 9 para. 2 lit. g of the GDPR. The data processing in question - in the form of the publication of the donor's name and their party donation - is

in any case suitable and necessary to inform the public regarding the financing of political parties through private contributions. The data processing in question creates the possibility for greater public oversight, highlighting...

possible conflicts of interest and compliance with compliance regulations and rules on donation limits.

D.5. Regarding the appellant's assertion concerning the alleged "disproportionality" of the scope of § 6 para. 2 and 3 of the Party Act (PartG) or the publication of the appellant's personal data

It should be reiterated at the outset that reference is made to the already cited committee report, which addresses the "appropriateness" of data processing on p. 48 within the framework of the data protection impact assessment - as follows:

"The appropriateness of the processing arises particularly from the cascade established in § 6 para. 2 of the PartG. Thus, the intensity of intervention increases with higher financial contributions to a party. For minimal contributions, neither the collection of personal data nor publication is required, in order to capture only cases above the materiality threshold. From a value of € 150, the storage and transmission of the name to the Court of Auditors is provided. Only for contributions over € 500 is it additionally required for the parties to collect and publish the postal code of the residential address or business address to distinguish between persons with the same name. Value limits for publications are also provided in the areas of publications according to § 7 of the PartG. Legal bases for the publication of the data already existed in part or are being newly created."

In the version of § 6 para. 2 and 3 of the PartG (BGBl. I No. 125/2022) applicable in the present case, the "cascade" of the appropriateness of processing personal data addressed in the committee report has been implemented as follows: For a party donation under € 150, no personal data of donors is to be reported to the Court of Auditors. For a donation amount over € 150, the name of the donor, the date of receipt of the donation, the amount, and the specific recipient of the donation must be reported to the Court of Auditors. For party donations over € 500, the postal code of the residential address or business address of the respective donor must also be reported to the Court of Auditors. Furthermore, for party donations over € 500, the Court of Auditors must publish the name and postal code of the donor, the date of receipt of the donation, the amount, and the specific recipient of the donation. For party donations over € 2,500 made between the cut-off date of an election to the National Council or the European Parliament and the election day, the name and address of the donor, the date of receipt of the donation, the amount, and the specific recipient of the donation must be reported to the Court of Auditors. The Court of Auditors must publish such donations, stating the name of the donor, the date of receipt of the donation, the amount, and the specific recipient of the donation.

The processing of personal data (the collection on the one hand and the publication on the other) according to § 6 para. 2 and 3 of the PartG is, with regard to the goal of "transparency in party financing," appropriate in that the intensity of intervention increases concerning the amount of the party donation (€ 150, € 500, and € 2,500) and the period in which the donation is made (between the cut-off date of an election to the National Council or the European Parliament and the election day).

As established, this concerns a party donation from the appellant amounting to € 3.***, which was received by Party X on **. May 2023. Now, **. May 2023 did not fall within a period between the cut-off date of an election to the National Council or the European Parliament and the election day, as there were no elections to the National Council or the European Parliament in 2023. Therefore, § 6 para. 2 third sentence of the PartG was applicable to this party donation ("The Court of Auditors must publish individual donations over € 500, stating the name and postal code of the donor, the date of receipt of the donation, the amount, and categorized by the specific recipient of the donation without delay.").

As established, the respondent has, in accordance with the processing of personal data provided for in § 6 para. 2 and 3 of the PartG - which is progressively more intensive - published the name of the appellant (Dieter A***), the postal code of the donor (****), the date of receipt of the donation (**. May 2023), the amount of the donation (€ 3.***), and the recipient of the donation (X**).

Based on the above, the Data Protection Authority cannot recognize the disproportionality of the scope of § 6 para. 2 and 3 of the PartG or the publication of the appellant's personal data as claimed by the appellant.

In conclusion, it should be noted that the publication of the appellant's personal data by the respondent

is also proportionate.

While it does indeed interfere relatively intensely with the appellant's fundamental right to confidentiality, ultimately, this interference is justified in light of the significant public interest in transparent party financing.

Therefore, there is no violation of the right to confidentiality. The present complaint was therefore to be dismissed accordingly.

Finally, the Data Protection Authority points out that alleged unconstitutional or EU law-violating laws or regulations cannot be the subject of a complaint procedure according to Art. 77 GDPR in conjunction with § 24 DSG.

The competence to decide on the constitutionality of a law does not lie with the supervisory authority but, according to Art. 140 B-VG, solely with the Constitutional Court. The question of the compliance of national legal regulations with EU law lies, according to Art. 267 TFEU, only with the CJEU.